

26STCV21068 26STCV21068

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Case Number: 26STCV21068 Hearing Date: July 31, 2026 Dept: 833

Rachel Oshiro Case No. 26STCV21068

Hearing:

July 31, 2026

v.

Location:

Stanley Mosk Courthouse Department:

833

Katelyn Frick, et. al. Judge:

Joseph Lipner

[Tentative] Order Granting Preliminary

Injunction

Plaintiff

Rachel Oshiro ("Plaintiff") seeks a preliminary injunction pending trial requiring

Defendants Katelyn Frick, Camille

Foster, and Daniel Guerra ("Defendants"), among other things, not to transfer,

sell, or conceal Petitioner's companion

animal known as Ricky Martin.

The

Court GRANTS the application for a preliminary injunction. The Court will spell out the terms of the

preliminary injunction in the conclusion. The preliminary injunction will

require Defendants to preserve the status quo, and not harm or transfer the

cat, among other things.

In the Court's analysis below, the Court concludes that Petitioner has conclusively demonstrated that she is the rightful owner of Ricky Martin and that Defendants are acting wrongfully by failing to return Ricky Martin to her. Defendants can moot this issue by simply returning Ricky Martin to Plaintiff.

For the sake of clarity, however, the Court makes clear that it cannot order a return of Ricky Marty to Plaintiff at the present time for the following procedural reason. On July 13, 2026, the Court (Murillo, J.) denied Petitioner's ex parte application for a writ of possession requiring the return of the cat. The Court invited Plaintiff to file another application for a writ of possession. So far, Plaintiff has not done so. Accordingly, the issue of the cat's return is not before the Court at today's hearing.

Plaintiff continues to have the option of filing such a writ of possession and if she does the Court will consider her request for an order requiring the return of Ricky Martin at the earliest appropriate time.

The Court must generally require Plaintiff to post a bond pursuant to Code of Civil Procedure Section 529. The Court will discuss with the parties what an appropriate bond would look like at the hearing. Plaintiff should be prepared to discuss her financial ability to post a bond.

LEGAL STANDARD

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on

the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

“The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy.” (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 [“a preliminary injunction is not a determination on the merits....”].)

DISCUSSION

A.

Summary of Facts

The application is based on Plaintiff’s cause of action for conversion and claim and delivery of personal property.

Plaintiff was living in a house with Defendants and Ricky Martin prior to June 2026.

Plaintiff seeks the immediate pre-judgment recovery of a unique, irreplaceable, living domestic companion animal named Ricky Martin. (Oshiro Decl., ¶ 2.) Plaintiff argues harm will occur to Ricky Martin because her companion animal is wholly unique and cannot be adequately protected, valued, or replaced by subsequent monetary damages under California law. (Oshiro Decl., ¶ 3.)

On June 21, 2026, Defendants executed a taking of Ricky Martin while Plaintiff was physically inside her residence packing her belongings. (Oshiro Decl., ¶ 4.) Since June 21, 2026, Defendants have concealed the animal at an undisclosed location and have denied multiple, written demands for his immediate return. (Oshiro Decl., ¶ 4.)

On June 21, 2026, Defendant Frick published a social media post via the Instagram account kat_kallen explicitly seeking unknown third parties to board

Plaintiff's cat. (Oshiro Decl., ¶ 5.) Following the concealment of Ricky Martin, Defendant attempted to commit identity fraud to change Ricky Martin's vet records by putting someone on the phone to pretend to be Plaintiff while Plaintiff was present at the animal hospital. (Oshiro Decl., ¶ 5.)

According to Plaintiff, Defendant Guerra has held Plaintiff's cat upside down, attempted to hang him upside down by his hind legs while he screamed and cried in distress and shook him. (Oshiro Decl., ¶ 6.) Furthermore, Defendant Frick actively filmed, laughed, and refused to intervene. (Oshiro Decl., ¶ 6.) Upon releasing the cat, Defendant Guerra executed punching motions directly at his face, causing the cat to flinch away in visible fear. (Oshiro Decl., ¶ 6.)

The official lease pet addendum for the Willowcrest residence, where Plaintiff was living prior to June 28, 2026, shows that Plaintiff alone owns the cat. (Oshiro Decl., ¶ 8.)

Defendant Foster and Guerra have a different recollection of facts. Both declarations are unsigned and undated. In *Arguelles-Romero v. Superior Court* (2010) 184 Cal.App.4th 825, 833, n. 6, the Court of Appeal explained that an undated declaration violates Code of Civil Procedure Section 2015.5, which requires that a declarant "state[] the date of execution", even if a Court can infer approximately when the declaration was signed. Additionally, an unsigned declaration has no evidentiary value and may not be considered at all. (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 217.) The Court is not aware of any law that indicates the Court has discretion as to whether to consider undated and unsigned declarations. Therefore, the Court declines to consider these declarations in full. But as discussed below, even if the Court considered the declarations, it would not change the result.

B.

Summary
of Procedure

On July 13, 2026, Petitioner brought an ex parte application for writ of possession and other relief. As described below, the Court (Murillo, J.) denied the application for writ of possession for the return of the cat but granted a temporary restraining order and OSC re preliminary injunction preserving the status quo.

Specifically, the Court entered a temporary restraining order requiring

Defendants not to transfer, conceal, or sell the cat pending the OSC. The Court also set today's OSC stating: "Defendants . . . are ORDERED TO SHOW CAUSE why a preliminary injunction should not issue restraining any transfer concealment, removal, sale/adoption, or failure to preserve the domestic case known as "Ricky Martin" . . . and restraining any alteration of records concerning the Property, and why the Court should not issue additional injunctive relief appropriate to preserve the Property pending the final adjudication of the underlying complaint." (7/13/2026 Minute Order.)

As to the writ of possession, the Court ruled: : "the statutory requirement for an ex parte writ of possession have not been met. The Ex Parte Application for Pre-Judgment Writ of Possession filed by Rachel Oshiro on /13/2026 is Denied. This order does not preclude Plaintiff from filing (and properly serving) an application for writ of possession on regular notice" (7/13/2026.)

Thus far,
Plaintiff has not filed another writ of possession.

C.

Plaintiffs'

Likelihood of Success on the Merits

Plaintiff has conclusively proven that Plaintiff is the owner of the Ricky Martin. (Oshiro Decl., Exhibit C, pg. 1-2; 15-17.) Defendants argue that Plaintiff was not the only owner because they "collectively contributed substantial time, effort, and financial resources toward Ricky Martin's care" but have not identified any case where these factors were relevant to determining ownership. The Court has not identified any case revolving around roommates, but in *Ballas v. Ballas* (1960) 178 Cal.App.2d 578, a divorce proceeding, the Court of Appeal assigned a dog to a wife on the grounds that (1) she acquired the dog with her own personal funds; (2) the dog was registered in her name at acquisition and remains so registered; and (3) she had possession for more than a year after separation. Accordingly, the Court puts weight on the fact that the pet lease included only Plaintiff's name and the microchip certificate shows only Plaintiff's name. (Oshiro Decl., Exhibit C, pg. 1-2; 15-17.)

Plaintiff has identified the property by breed, color/markings, microchip number, and value. (Application of July 13, 2026 ("Application"), ¶

4.) Plaintiff believes the property is located at 5631 Willowcrest Ave, North Hollywood, CA 91601 “or actively concealed by the Defendants at an undisclosed nearby secondary location.” (Application, ¶ 6.) Plaintiff explains that Ricky Martin was removed from the Willowcrest address (“a felonious taking”) while Plaintiff was staying there, but Defendants have offered visitation, suggesting that Ricky Martin has since been returned to the Willowcrest address. (Application, ¶¶ 5, 7.) Plaintiff agrees that Ricky Martin has not been seized under an execution against the plaintiff’s property. (Application, ¶ 8.)

There are documented proof of service filed on July 16, 2026 which show Camille Foster and Daniel Guerra were personally served. Katelyn Frick was served by substitute service, with papers delivered to Daniel Guerra.

Plaintiff has established a likelihood of success on the merits of her claim for conversion and claim and delivery.

D.

Balance
of Harms

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) “Irreparable harm” generally means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (See Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.) The showing of harm is even more demanding when a Plaintiff seeks injunctive relief against a public entity because “[t]here is a general rule against enjoining public officers or agencies from performing their duties.” (Tahoe Keys Property Owners’ Assn. v. State Water Resources Control Bd. (1994) 23 Cal.App.4th 1459, 1471.)

Plaintiff argues she will suffer irreparable harm because “a living companion animal is wholly unique and cannot be adequately protected, valued, or replaced by subsequent monetary damages under California law.” (Oshiro Decl., ¶ 3.) Plaintiff also argues that there is a risk of a permanent loss of her animal since Defendant Frick has requested third parties to board her cat.

(Oshiro Decl., ¶ 5.) Defendants do not identify any irreparable harm they will suffer if an injunction is issued.

Therefore, the balance of harms weighs in favor of Plaintiff getting a preliminary injunction.

CONCLUSION

The Court GRANTS the application for a preliminary injunction. Accordingly, pending the trial of this matter, Defendants, as well as their agents and all persons acting in concert with them, are restrained as follows.

1.

Defendants, their agents, and all persons acting in concert with them shall not transfer, move, conceal, remove, sell, adopt, or harm the domestic cat known as "Ricky Martin."

2.

Defendants, their agents, and all persons acting in concert with them shall not alter or destroy any records concerning Ricky Martin.

3.

As a further order to preserve Ricky Martin pending the trial, Defendants shall by August 3, 2026 at noon disclose in writing to Plaintiff the current location of Ricky Martin.

IT IS SO ORDERED.

Dated: July 31,
2026

Joseph
Lipner

Superior

Court Judge